

4.

CASE #	CASE NAME	HEARING NAME
CVRI2602861	ALRAHAMAN, LLC vs LATHAM MANAGEMENT AND CONSULTING SERVICE, INC.	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Please see below

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CVRI2602861	ALRAHAMAN, LLC vs LATHAM MANAGEMENT AND CONSULTING SERVICE, INC.	DEMURRER ON COMPLAINT

Tentative Ruling:

Plaintiff Alrahaman, LLC alleges that Defendants Latham Management and Consulting Service, Inc. and Kali Pradip Chaudhuri owned vacant land in San Jacinto that Plaintiff intended to develop as a service station and convenience store. During negotiations beginning in August 2020, Defendants allegedly represented that they would complete off-site/on-site improvements, ingress/egress improvements, and utility improvements needed for that development. Two months later, the parties entered into a Vacant Land Purchase Agreement and Joint Escrow Instructions. Section no. 8 of the Agreement allegedly required the seller to complete the improvements within 12 months after closing, subject to three 30-day extensions.

Escrow closed on 1/30/23, and Plaintiff alleges that it paid \$2,474,000. Defendants allegedly did not complete the improvements despite later stating that they were doing so. Plaintiff alleges that it would not have purchased the property had it known Defendants would not perform and that it also incurred expenses on design and development plans. The complaint, filed 5/11/26, asserts: (1) relief based on rescission of contract; breach of contract; (2) relief based on rescission of contract; fraud; (3) relief based on rescission of contract; negligent misrepresentation; (4) constructive trust.

Now, Defendants demur to the 2nd, 3rd, and 4th causes of action for failure to state facts sufficient. They argue that the fraud and negligent misrepresentation claims omit who said what, to whom, when, where, and by what means. They argue that the pleading only alleges a promise. They assert that the pleading improperly group Defendants together. Defendants also argue that constructive trust is a remedy rather than a cause of action and that Plaintiff does not identify traceable property. Defendants concurrently move to strike the punitive damages because the complaint does not plead oppression, fraud, or malice, or the corporate authorization or ratification. Defendants argue that the same deficiencies leave punitive damages